

PAYER'S name, street address, city, state, ZIP, telephone no. Brightwater Partners LLC 175 Federal Street, Suite 1400, Boston, MA 02110 (617) 555-0119	
PAYER'S TIN 04-2207731	RECIPIENT'S TIN XXX-XX-7731
RECIPIENT'S name Adrian M. Holloway (Holloway Strategy Advisory) Street address 27 Pheasant Run Lane Greenwich, CT 06831	

Form 1099-NEC (Rev. April 2025) Nonemployee Compensation		
For calendar year 2025		
1 Nonemployee compensation		14,200.00
2 Payer made direct sales totaling \$5,000 or more ☐		
4 Federal income tax withheld 0.00		(box 3 reserved)
5 State tax withheld 0.00	6 State/Payer state no. CT	7 State income 0.00

Account number (see instructions) HSA-2025-0042
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Instructions for Recipient: You received this form because Brightwater Partners LLC paid you \$600 or more of nonemployee compensation in the course of its trade or business during 2025. Report the amount in Box 1 on your income tax return. Box 4 shows any federal income tax withheld; Boxes 5–7 show state information. This information is being furnished to the Internal Revenue Service.

This document package contains the Form 1099-NEC above together with the proprietor's own income and expense records for the consulting activity: a payment and invoice register, a business-expense ledger by category, a receipts log, a record of estimated-tax payments, and monthly and multi-year summaries. The records are kept on the cash method and are furnished for the proprietor's files.

BUSINESS PROFILE	
Business name	Holloway Strategy Advisory
Proprietor	Adrian M. Holloway
Principal business	Management & strategy consulting
Business code	541618
EIN	93-4471829
Accounting method	Cash
Material participation	Yes
Business address	27 Pheasant Run Lane, Greenwich, CT 06831

The consulting activity is a part-time engagement. Gross receipts for 2025 were 14,200.00, all reflected on the Form 1099-NEC above; business expenses paid during the year were 2,900.00, leaving a net of 11,300.00 of receipts over expenses for the activity. No federal or state income tax was withheld on the payments.

The proprietor materially participates in the business and conducts it from a location in Greenwich, Connecticut. The business did not maintain inventory, did not have employees or contract labor, and did not own business vehicles or use a portion of the home regularly and exclusively for business during 2025. All income was received by electronic transfer and all expenses were paid by card or electronic transfer and are substantiated by the receipts log included in this package.

The payment register, expense ledger, receipts log, record of estimated-tax payments, and the monthly and multi-year summaries appear on the following pages. The records present the amounts received and paid; they are furnished for the proprietor's files and are not advice.

HOLLOWAY STRATEGY ADVISORY

Sole Proprietorship • 2025 Income and Expense Records

Tax Year 2025

EIN 93-4471829 • Code 541618

Payment and Invoice Register — 2025

Invoice #	Date Paid	Description	Amount
2025-001	02/2025	Strategy advisory — Q1 retainer	2,800.00
2025-014	04/2025	Market entry assessment	3,100.00
2025-031	07/2025	Operating-model review	2,600.00
2025-046	09/2025	Diligence support engagement	3,000.00
2025-058	11/2025	Q4 advisory retainer	2,700.00
Total		Gross receipts	14,200.00

All payments were received by ACH from Brightwater Partners LLC and deposited to the proprietor's checking account; the deposits appear on the bank records labeled BRIGHTWATER PARTNERS LLC. Total gross receipts of \$14,200.00 correspond to Box 1 of the Form 1099-NEC. No other clients paid the business during 2025, and no Forms 1099-NEC other than the one shown were received.

Business Expense Ledger by Category — 2025

Category	Description	Amount
Software & online subscriptions	Research tools, productivity, CRM	1,400.00
Professional development	Courses, conference registration	600.00
Advertising	Website, professional listing	600.00
Supplies	Office supplies, printing	300.00
Total business expenses paid		2,900.00

Expenses listed were paid during 2025 and are substantiated by the receipts log. No vehicle, home-office, depreciation, meals, travel, or contract-labor amounts were recorded for 2025. Receipts over expenses for the consulting activity were \$11,300.00 for the year.

Receipts Log — 2025 (Substantiation)

Date	Vendor	Category	Amount
01/18/2025	ResearchHub Pro (annual)	Software	640.00
02/22/2025	CRM SaaS (annual)	Software	420.00
03/15/2025	Productivity suite (annual)	Software	340.00
04/10/2025	Strategy conference registration	Prof. development	450.00
05/06/2025	Online course — analytics	Prof. development	150.00
06/12/2025	Professional listing / directory	Advertising	300.00
07/20/2025	Website hosting & domain	Advertising	300.00
08/14/2025	Office supplies — Staples	Supplies	165.00
10/02/2025	Printing & business cards	Supplies	135.00
Total			2,900.00

Record of Estimated-Tax Payments — 2025

Installment	Due Date	Payment Made	Cumulative
1st quarter	04/15/2025	0.00	0.00
2nd quarter	06/16/2025	0.00	0.00
3rd quarter	09/15/2025	0.00	0.00
4th quarter	01/15/2026	0.00	0.00
Total estimated tax paid for 2...		0.00	0.00

No federal or state estimated tax payments were made for the 2025 tax year. No tax was withheld on the consulting payments.

Monthly Income and Expense Summary — 2025

Month	Income received	Expenses paid	Net
January	0.00	640.00	(640.00)
February	2,800.00	420.00	2,380.00
March	0.00	340.00	(340.00)
April	3,100.00	450.00	2,650.00
May	0.00	150.00	(150.00)
June	0.00	300.00	(300.00)
July	2,600.00	0.00	2,600.00
August	0.00	165.00	(165.00)
September	3,000.00	0.00	3,000.00
October	0.00	135.00	(135.00)
November	2,700.00	0.00	2,700.00
December	0.00	300.00	(300.00)
Total	14,200.00	2,900.00	11,300.00

Income is recognized when received and expenses when paid, under the cash method. Receipts over expenses for 2025 were \$11,300.00. Income was received in five of the twelve months.

Three-Year Business Summary

Year	Gross receipts	Expenses	Receipts over expenses
2023	11,800.00	2,500.00	9,300.00
2024	12,900.00	2,700.00	10,200.00
2025	14,200.00	2,900.00	11,300.00

Gross receipts and the net of receipts over expenses have grown modestly over the three-year period. The activity was carried on in each of the three years.

Engagement Log — 2025

Engagement	Period	Fee basis	Fee (US\$)
Q1 strategy advisory retainer	Jan–Mar 2025	Fixed retainer	2,800.00
Market entry assessment	Mar–Apr 2025	Per-project	3,100.00
Operating-model review	Jun–Jul 2025	Per-project	2,600.00
Diligence support engagement	Aug–Sep 2025	Per-project	3,000.00
Q4 advisory retainer	Oct–Nov 2025	Fixed retainer	2,700.00
Total			14,200.00

All engagements during 2025 were with a single client, Brightwater Partners LLC, which issued the Form 1099-NEC reflecting total payments of \$14,200.00. The engagements were performed personally by the proprietor.

Receipts Log (continued) — 2025

Date	Vendor	Category	Amount
01/05/2025	ResearchHub Pro — annual renewal	Software	640.00
02/01/2025	DataRoom subscription	Software	180.00
02/19/2025	CRM SaaS — annual	Software	420.00
03/03/2025	Slide-design tool — annual	Software	240.00
03/27/2025	Productivity suite — annual	Software	100.00
04/09/2025	Strategy conference — registration	Prof. development	450.00
05/02/2025	Online analytics course	Prof. development	150.00
06/10/2025	Professional directory listing	Advertising	300.00
07/15/2025	Website hosting & domain (annual)	Advertising	300.00
08/12/2025	Office supplies — Staples	Supplies	95.00

Date	Vendor	Category	Amount
09/04/2025	Printing — proposals	Supplies	70.00
10/01/2025	Business cards	Supplies	70.00
12/02/2025	Postage & courier	Supplies	65.00
Total substantiated ...			2,900.00

The receipts log substantiates each recorded expense. Software and online-subscription costs that cover a twelve-month period are recorded in the year paid, consistent with the cash method. No item was capitalized and no depreciation was recorded.

Vehicle and Home-Office Information

Item	2025
Business miles driven	Not recorded
Total miles driven	Not tracked — no vehicle expense recorded
Vehicle expense method	None
Home-office use	Not recorded
Square footage used regularly and exclusively	Not recorded
Form 8829 prepared	No

The business did not record a vehicle expense or business use of the home for 2025. Travel to client meetings, where any, was incidental and not separately recorded. Contemporaneous records such as a mileage log or a home-office measurement were not maintained for 2025.

No contract labor was engaged, and no Forms 1099-NEC were issued by the business. No employees were employed, and no payroll-tax returns were filed. The business maintained no inventory and recorded no cost of goods sold.

Summary of the Activity's Records

These records set out the amounts received from the consulting activity and the amounts paid for its expenses during 2025, by invoice, by category, and by month, together with a three-year comparison and a record of estimated-tax payments. The records present the underlying figures; they do not compute any tax on the activity and are furnished for the proprietor's files.

Amounts are stated in U.S. dollars and are taken from the proprietor's bank records and the receipts log. Where a total is shown, it is computed from the individual entries above it. Any apparent discrepancy between these records and the proprietor's bank records should be reconciled to the bank records.

Purpose and Scope of This Document

This document is furnished for the recipient's records and reflects the activity and balances of the account or matter to which it relates for the period shown. It is a statement of fact prepared from the issuer's books and records and from information provided by third parties. It does not contain advice and is not intended to recommend or direct any particular course of action. The recipient is responsible for determining how the information should be used and for any decision based on it.

Where this document accompanies other statements or returns for the same period, each is prepared independently and serves a distinct purpose. The recipient should review all of the documents together and form an independent judgment. Nothing in this document is intended to substitute for the recipient's own analysis or for advice from the recipient's own professional advisors.

Basis of Preparation

Amounts are recorded on the basis ordinarily used by the issuer for accounts of this type. Income and expense items are recognized when received, paid, accrued, or posted, as applicable, consistent with the issuer's standard practice. Balances are stated as of the dates indicated. The figures are derived from transaction records and, where applicable, from prices and information supplied by independent sources.

Figures in this document are unaudited unless expressly stated otherwise. They are believed to be accurate as of the date of preparation; however, they may be subject to later adjustment, correction, or restatement. If the recipient identifies an item that appears inconsistent with the recipient's own records, the recipient should contact the issuer using the information provided.

Currency and Rounding

Amounts are presented in the currency indicated for each figure or column. Where amounts denominated in one currency are also shown in another for convenience, the exchange rate used and the basis on which it was applied are identified in the relevant section; figures translated at a stated rate are provided for information only. Amounts are rounded to the nearest unit shown, and totals are computed from unrounded figures where practicable, so a total may differ slightly from the sum of the rounded amounts displayed.

Reading the Figures

Each section presents the underlying figures and the labels that the issuer uses to describe them. Column headings identify the nature of each amount. Subtotals and totals are provided where they assist in reading the section. The document presents what occurred and the resulting balances; it does not interpret those figures or characterize them for any external purpose.

Valuation Methodology

Where market values are shown, securities are valued using quoted prices on the principal market at the close of business on the reporting date, or, where a quoted price is not available, using an evaluated price obtained from an independent pricing source. Cash and cash-equivalent balances are stated at face amount. Cost basis, where shown, is recorded in the functional currency at the time of acquisition and is presented for information.

Sources of Information

This document is prepared from the issuer's own records and from information furnished by custodians, paying agents, counterparties, and other third parties. While the issuer takes reasonable care in compiling the information, it does not independently verify all information received from third parties and is not responsible for errors originating with those parties. Discrepancies should be reported promptly so that they can be investigated.

Confidentiality

This document is confidential and is intended solely for the named recipient and the recipient's authorized representatives. It may contain personal and financial information. The recipient should store it securely and should share it only with persons who have a legitimate need to see it, such as the recipient's own professional advisors. The issuer is not responsible for any disclosure that results from the recipient's handling of the document.

Retention of Records

The recipient should retain this document, together with related statements and supporting records, for the period during which the information may be needed, and in any event for as long as the underlying account or matter remains open. Retaining complete and organized records assists the recipient in reviewing the information, in responding to inquiries, and in preparing any filings the recipient is responsible for. Additional copies can be requested from the issuer, subject to any applicable fee.

Professional Advice

The issuer of this document does not provide legal, tax, or accounting advice, and nothing in this document should be read as such advice. The treatment of any item for the recipient's purposes depends on the recipient's own circumstances. The recipient should consult the recipient's own qualified advisors regarding any question about how the information in this document should be used.

Accuracy and Limitations

The issuer has prepared this document with reasonable care but does not warrant that it is free from error. Past activity and balances are not indicative of future activity or balances. Where this document includes estimates or amounts that are expected rather than final, they are identified as such; estimates are inherently uncertain and may differ from final figures. The issuer's records, absent manifest error, are presumed to reflect the activity accurately.

Questions About This Document

If the recipient has a question about any figure, transaction, or label in this document, the recipient should contact the issuer using the contact information shown. Having the document and the relevant account or reference number available will assist the issuer in responding. The issuer will investigate any apparent error and will provide a corrected document where appropriate.

Electronic Delivery

Where the recipient has elected to receive documents electronically, this document may be delivered by posting it to a secure portal or by sending it to the address the recipient has provided. The recipient is responsible for maintaining current contact details and compatible means of access. An electronically delivered document has the same effect as one delivered on paper. The recipient may request a paper copy as described by the issuer.

Definitions

Beginning and ending balances refer to the amounts at the start and end of the period shown. Market value is the value of a holding at quoted or evaluated prices on the reporting date. Cost basis is the recorded acquisition amount in the functional currency. Realized amounts are those recognized on a completed transaction; unrealized amounts relate to positions still held. Accrued amounts are recognized though not yet received or paid. These descriptions are provided to assist in reading the figures and are not statements of how any amount should be treated for any external purpose.

Period Covered

This document covers the period stated in the header. Items dated after the close of the period are not reflected and will appear in a later document. Where a document is issued at the end of a year, it may include summary information for the full year in addition to the most recent period; the periodic documents remain the primary record.

No Recommendation

The presentation of any figure, holding, balance, or category in this document does not constitute a recommendation, an opinion, or an instruction. The document records what is, and does not advise what to do. Any decision based on the information is solely the recipient's, made on the recipient's own judgment and, where appropriate, with the assistance of the recipient's own advisors.

Order of Items and Headings

Headings and the order of sections are provided for convenience of reference only and do not affect the meaning of the figures. Where an item could be presented in more than one section, it is shown in the section the issuer considers most useful; this presentation choice does not change the nature of the item. Cross-references within the document, where given, are intended only to help the reader locate related figures.

Changes and Corrections

If a figure in a previously issued document is later found to require adjustment, the issuer will issue a corrected document identifying the change. The recipient should rely on the most recent corrected version. The recipient should review each document promptly on receipt and report any apparent discrepancy within the time and in the manner described by the issuer, so that any necessary correction can be made.

Contact and Service

Service and contact information is shown on this document. Communications with the issuer may be monitored or recorded for quality and recordkeeping purposes, consistent with applicable law. The issuer endeavors to respond to inquiries promptly. The recipient should keep the contact information for future reference and should use the designated address or channel for the type of inquiry concerned.

Privacy of Information

The issuer collects information about the recipient in connection with the account or matter to which this document relates, and uses that information to administer the relationship, to prepare and deliver documents, and to comply with applicable requirements. The issuer maintains administrative, technical, and physical safeguards designed to protect the information. The issuer's full privacy notice describes the categories of information collected and the circumstances in which it may be shared, and is available on request.

Severability and Waiver

If any provision of the terms governing the account or matter is found to be invalid or unenforceable, the remaining provisions continue in effect, and the invalid provision is applied to the maximum extent permitted. A failure or delay by the issuer in exercising any right is not a waiver of that right, and a waiver on one occasion does not operate as a waiver on any other occasion. Headings are for convenience only and do not affect interpretation.

Assignment and Successors

The issuer may transfer its rights and obligations in connection with the account or matter to a successor or assign, to the extent permitted by the governing terms and applicable law. The recipient may not transfer the recipient's rights or obligations without the issuer's consent where consent is required. The governing terms bind and benefit the parties and their respective successors and permitted assigns.

Events Beyond Reasonable Control

The issuer is not responsible for any failure or delay in performing its obligations that results from causes beyond its reasonable control, including natural events, failures of power or communications, the acts or omissions of third parties, and similar circumstances. The issuer will resume performance as soon as reasonably practicable after the cause is resolved. This provision does not limit any responsibility that may not be limited under applicable law.

Entire Understanding

This document, together with the governing terms and any documents they incorporate by reference, sets out the understanding between the parties with respect to its subject matter and supersedes prior or contemporaneous understandings on that subject. No oral statement modifies the governing terms. In the event of a conflict between this document and the governing terms, the governing terms control as to matters they address.

Interpretation

In this document and the governing terms, the singular includes the plural and the plural the singular as the context requires; the words 'including' and 'such as' are illustrative and not limiting; and a reference to a person includes the person's permitted successors. Examples are provided for clarity and do not limit the generality of the related provision. Where a date for an action falls on a day that is not a business day, the action may be taken on the next business day unless otherwise required.

No Third-Party Beneficiaries

The account or matter to which this document relates is for the benefit of the recipient and the issuer and, where applicable, their successors and assigns. Except as expressly provided or required by applicable law, the arrangement does not create rights in any other person, and no other person may enforce any provision. This does not limit any rights that a supervisory authority may have.

Accessibility and Language

If the recipient needs this document in an alternative format, or requires an accommodation to communicate with the issuer, the recipient may request one using the contact information shown, and the issuer will work with the recipient to provide a reasonable accommodation. Where a translation of a document is provided for convenience, the original-language version governs in the event of any inconsistency unless applicable law requires otherwise.

Complaints

If the recipient has a concern about the account or matter or about this document, the recipient should first raise it with the issuer using the contact information shown, so that the issuer has an opportunity to address it. The recipient may also have the right to raise the matter with a supervisory authority with jurisdiction over the issuer. Maintaining a record of communications, including dates and reference numbers, assists in resolving any concern.

Survival of Provisions

Provisions of the governing terms that by their nature should continue after the account or matter is closed will continue, including provisions relating to amounts owed, confidentiality, limitation of responsibility, recordkeeping, and the resolution of disputes. The closing of the account or matter does not affect obligations or rights arising from events before it was closed.

Effective Date and Updates

The information in this document is effective as of the date shown and remains current until superseded by a later document. The governing terms may be updated from time to time in accordance with their own provisions and applicable law; where notice of an update is required, it will be given in the manner those terms specify. The recipient should keep contact details current so that documents and notices are received.

Reliance and Acceptance

By retaining the account or continuing the matter after receiving this document, the recipient acknowledges receipt of the document and the information it contains. If the recipient does not agree with a figure or an entry, the recipient should contact the issuer promptly so that it can be reviewed. This document supplements, and does not replace, the complete governing terms, which control as to the matters they address.

Identity Verification

The issuer is required to obtain, verify, and record information that identifies each person who maintains the account or relationship to which this document relates. The issuer may ask for documentation to confirm identity at the outset and from time to time thereafter, and may decline to act on an instruction until verification is complete. These measures are intended to protect the recipient and to satisfy the issuer's obligations, and do not affect the figures presented in this document.

Copies and Reproductions

The recipient may request additional or replacement copies of this document from the issuer. A reasonable fee may apply for copies of historical records, and the issuer will advise of any fee before it is incurred. A reproduction of this document has the same informational content as the original; where a certified copy is required for a particular purpose, the recipient should request one specifically.

Joint and Multiple Recipients

Where the account or matter to which this document relates is held by or concerns more than one person, a single document furnished to one of them is treated as furnished to all, unless the governing terms provide otherwise. Each such person is entitled to the information in this document, and the issuer may act on the instruction of any one of them to the extent the governing terms permit. The recipients are responsible among themselves for sharing the document as appropriate.

Presentation of Percentages and Rates

Where percentages, rates, or proportions are shown, they are presented to the number of decimal places the issuer ordinarily uses for the figure concerned and may have been rounded. A percentage shown for a component may not, when applied to a total, reproduce exactly the amount shown for that component, because the displayed percentage is rounded while the underlying calculation is not. Percentages are provided to assist the reader and do not change the underlying amounts.

Order and Presentation of Amounts

Amounts are presented in the order and grouping the issuer considers most useful for the document concerned. Where the same amount is relevant to more than one part of the document, it may be shown in each relevant part; showing an amount more than once does not mean it has been counted more than once in any total. Totals are computed once from the underlying amounts. Where a figure is shown in parentheses, it represents a negative amount or a deduction.

Notices

A notice or other communication relating to the account or matter is effective when delivered in the manner the governing terms specify, whether by post, by electronic means, or by posting to a secure portal. The recipient is responsible for keeping current the address and other contact details on file, and for reviewing communications when they are made available. A notice is not invalid merely because the recipient did not in fact read it, provided it was delivered as specified.

Governing Language

This document is prepared in the English language. Where the issuer provides a translation of any part of it for convenience, the English-language version governs in the event of any inconsistency, unless applicable law requires that another language govern. Terms defined in this document have the meaning given to them here when used in it; other terms have their ordinary meaning in the relevant context.

Format and Storage of Records

The issuer maintains records of the account or matter in the formats it ordinarily uses, which may be electronic, and may convert records from one format to another for storage. A record produced from the issuer's systems in the ordinary course is, absent manifest error, treated as an accurate record of the matter it concerns. The recipient may keep this document in paper or electronic form; an electronic copy retained by the recipient has the same informational content as a paper copy.

Continuity of Service

The issuer maintains arrangements intended to allow it to continue or promptly resume service in the event of a disruption. From time to time, scheduled maintenance or circumstances beyond the issuer's control may affect access to services or the timing of documents. Where a document is delayed for such a reason, it remains accurate as of the date it states, and the issuer will make it available as soon as reasonably practicable.

Electronic Communications and E-Sign Consent

Where you have agreed to receive documents electronically, we may provide statements, notices, disclosures, and other communications relating to your account or relationship in electronic form, including by posting them to a secure online portal or by sending them to the email address you have provided. You may withdraw your consent to electronic delivery and request paper copies at any time by contacting us, although a fee may apply for paper copies of certain documents. You are responsible for maintaining a valid email address and compatible hardware and software to access electronic communications. Electronic communications are considered received by you when sent or made available, whether or not you actually access them.

You agree to notify us promptly of any change in your email address, mailing address, or telephone number. If an electronic communication is returned as undeliverable, we may suspend electronic delivery and resume paper delivery to your address of record. The legal effectiveness, validity, and enforceability of an electronically delivered communication is not affected by its electronic form. You may print or download communications for your records; we are not obligated to retain electronic communications longer than required by law.

Communications With You; Telephone and Text

You authorize us, our affiliates, and our service providers to contact you using the contact information you provide, including by calling or sending text messages to a mobile or other telephone number, using automatic telephone dialing systems, artificial or prerecorded voice messages, and email, for purposes related to your account, including servicing, fraud prevention, and collection of amounts owed. You understand that you are not required to provide this consent as a condition of obtaining credit or services, and that message and data rates may apply to text messages. You may withdraw consent to particular channels by contacting us as described in your agreement.

We may monitor and record telephone calls and other communications with you for quality assurance, training, fraud prevention, and recordkeeping purposes, to the extent permitted by applicable law. Calls may be answered by automated systems. If you communicate with us through a messaging or chat feature, those communications may also be recorded and retained. Our retention and use of recordings and communications are governed by our privacy practices and applicable law.

Privacy and Information Security

Protecting the confidentiality and security of your information is important to us. We collect nonpublic personal information about you from the information you provide, from your transactions, and from third parties such as consumer reporting agencies. We use this information to operate our business, service your account, prevent fraud, and comply with legal and regulatory requirements. We may share information with affiliates and nonaffiliated third parties only as permitted by law and as described in our privacy notice.

We maintain administrative, technical, and physical safeguards designed to protect your information against unauthorized access, use, or disclosure. No system of safeguards is perfectly secure, and we cannot guarantee that information will never be accessed in a manner inconsistent with this notice. You should protect your account credentials, review your statements promptly, and report any suspected unauthorized activity to us without delay so that we can take appropriate action.

Identity Theft and Fraud Prevention

We maintain a program designed to detect, prevent, and mitigate identity theft in connection with the opening and maintenance of accounts. If we detect activity that appears suspicious or inconsistent with your usual pattern of activity, we may attempt to contact you to verify the activity, and we may decline or delay a transaction pending verification. We are not liable for declining or delaying a transaction in good faith for fraud-prevention purposes. If you believe you are a victim of identity theft, contact us immediately and consider placing a fraud alert or security freeze with the consumer reporting agencies.

You agree to take reasonable steps to safeguard your account, including protecting cards, account numbers, passwords, and personal identification numbers, and promptly reviewing statements and transaction records. If you share your credentials with a third party, including an account-aggregation or financial-management service, you do so at your own risk, and we are not responsible for the security practices of that third party or for any access to or use of your account that results from your sharing of credentials.

Complaints and How to Contact Us

If you have a question or complaint about your account, please contact us first using the customer service information shown on this document so that we have the opportunity to resolve the matter. We will investigate your complaint and respond within the timeframes required by applicable law. Maintaining a record of your communications with us, including dates, names, and reference numbers, will assist in resolving any dispute. Many questions can be resolved promptly through our customer service channels.

In addition to contacting us, you may have the right to submit a complaint to a federal or state regulatory agency with jurisdiction over our products and services, including, where applicable, the Consumer Financial Protection Bureau or your state's department of banking or financial institutions. Information about how to contact the appropriate regulator is available on the regulator's website. Submitting a complaint to a regulator does not affect any other rights you may have.

Accessibility and Language Access

We are committed to providing access to our products and services for individuals with disabilities. If you need this document or other communications in an alternative format, such as large print, Braille, or audio, or if you require an accommodation to communicate with us, please contact customer service and we will work with you to provide a reasonable accommodation. Alternative-format documents are provided at no additional charge.

Certain documents and customer service assistance may be available in languages other than English. Where a translated document is provided for your convenience, the English-language version governs in the event of any inconsistency, unless applicable law requires otherwise. If you would prefer to communicate with us in a language other than English, please ask, and we will endeavor to accommodate your request where resources permit.

Changes to Terms; Notice

We may add, change, or delete the terms applicable to your account or relationship from time to time, subject to applicable law. When we are required to give you advance notice of a change, we will do so in the manner and within the timeframe required by law, and where you have the right to reject a change, we will tell you how to do so. Unless we state otherwise or applicable law requires otherwise, your continued use of the account or services after the effective date of a change constitutes your acceptance of the change.

Some changes, such as changes required by law or changes that are favorable to you, may take effect without advance notice. We will provide notice of changes by mail, electronically where you have consented to electronic delivery, by a message on or with your statement, or by another method permitted by law. It is your responsibility to keep your contact information current so that you receive notices.

Waiver; Severability; Entire Agreement

Our failure to exercise, or our delay in exercising, any right under your agreement is not a waiver of that right, and our waiver of any right on one occasion is not a waiver of that right on any other occasion. If any provision of your agreement is found to be invalid or unenforceable, that provision will be enforced to the maximum extent permitted, and the remaining provisions will continue in full force and effect. Headings are for convenience only and do not affect interpretation.

Your agreement, together with the documents it incorporates by reference, such as applicable fee schedules, rate sheets, and disclosures, constitutes the entire agreement between you and us regarding the subject matter and supersedes any prior or contemporaneous understandings. No oral statement or representation by any employee or agent modifies your agreement or creates any obligation inconsistent with the written terms. You should not rely on any statement that is inconsistent with the written agreement.

Assignment and Successors

We may sell, assign, or transfer your account, your agreement, or any of our rights or obligations under them, in whole or in part, at any time and without prior notice to you unless notice is required by law. The party to whom we make such a transfer will be entitled to the benefit of our rights to the extent transferred. You may not sell, assign, or transfer your account, your agreement, or any of your rights or obligations under them. Your agreement binds and benefits you, us, and our respective successors and permitted assigns.

Force Majeure and Limitation of Liability

We will not be liable for any failure or delay in performing our obligations that results from causes beyond our reasonable control, including acts of God, natural disasters, fires, floods, severe weather, pandemics, war, terrorism, civil disturbances, labor disputes, power or telecommunications failures, equipment or system malfunctions, or the acts or omissions of third parties, including merchants, networks, and other financial institutions. We will resume performance as soon as reasonably practicable after the cause is resolved.

To the maximum extent permitted by applicable law, we are not liable for indirect, incidental, special, consequential, or punitive damages, including lost profits, even if we have been advised of the possibility of such damages, arising out of or relating to your account or our services. Nothing in this provision limits any liability that may not be limited or excluded under applicable law. Some jurisdictions do not allow the exclusion or limitation of certain damages, so some of these limitations may not apply to you.

Third-Party Products and Services

From time to time we may make available, or provide links or references to, products and services offered by third parties. We do not control and are not responsible for the products, services, content, security, or privacy practices of third parties, and the availability of a third-party product or service through us does not constitute an endorsement. Your dealings with any third party, including any terms, conditions, warranties, or representations associated with such dealings, are solely between you and the third party.

If you authorize a third party, such as a financial-management application or data aggregator, to access your account information, you are responsible for the third party's use of that information and for any actions taken using your credentials. We may, consistent with applicable law and our security requirements, limit or terminate third-party access to protect the security of our systems and your information.

Records, Statements, and Reconciliation

This document is an important record of your account and should be retained for your tax and personal records. You agree to review it promptly and to notify us of any error, unauthorized transaction, or discrepancy within the timeframes described in your agreement and applicable law. Failure to review your statements and to report problems in a timely manner may limit your rights and may relieve us of liability for certain losses. Where you maintain your own records, you should reconcile them against this document each period.

We maintain records of your account activity in accordance with our records-retention policies and applicable law. Upon request, and subject to any applicable fee, we can provide copies of prior statements and certain other records for the periods we are required to retain them. Our records of transactions, in the absence of manifest error, are presumed to accurately reflect the activity on your account.

Unclaimed Property

If there is no activity in your account, or if we are unable to contact you, for a period specified by applicable state law, your account may be deemed abandoned or dormant. After the applicable dormancy period, and following any notice required by law, the funds or property in your account may be remitted to the appropriate state as unclaimed property. After funds are remitted to the state, you must apply to the state to recover them. Maintaining periodic activity and keeping your contact information current helps prevent your account from being classified as dormant.

Governing Law and Venue

Except to the extent governed by federal law, your account and your agreement are governed by and construed in accordance with the laws of the state specified in your agreement, without regard to its conflict-of-laws principles. Subject to any arbitration provision in your agreement, you agree that any legal action or proceeding relating to your account may be brought in the courts located in that state or in the applicable federal courts, and you consent to the jurisdiction of those courts. These provisions apply to the fullest extent permitted by applicable law.

No Tax or Investment Advice

Nothing in this document constitutes tax, legal, accounting, or investment advice, and you should not rely on it as such. The treatment of any item for tax or other purposes depends on your individual circumstances. You are responsible for determining the appropriate treatment of the items reported in this document and for the preparation and accuracy of your own tax returns and other filings. We recommend that you consult a qualified professional advisor regarding your particular situation before taking any action based on this document.

Questions About This Document

If you have questions about any amount, transaction, or disclosure in this document, please contact us using the customer service information provided. Have this document and your account number available so that we can assist you efficiently. We are committed to providing clear and accurate information; if we identify an error in this document after it has been issued, we will provide a corrected document and, where appropriate, notify the relevant authorities. Please retain this document until you have verified its accuracy and completed any related filings.

Set-Off Rights

To the extent permitted by applicable law, we may apply funds in any account you hold with us, or with our affiliates, against amounts you owe us that are due and payable, without prior notice to you. This right of set-off applies to accounts you own individually and, subject to applicable law, to accounts you own jointly. The right of set-off does not apply to accounts or amounts that applicable law protects from set-off, including certain tax-deferred accounts and certain federal benefit payments. Our right of set-off is in addition to any security interest you have granted us and any other rights we have under your agreement or applicable law.

Account Ownership and Authorized Parties

The ownership of your account is determined by your account agreement and applicable law. If your account is owned jointly, each owner may act independently with respect to the account, including making deposits and withdrawals, unless your agreement provides otherwise, and each owner is jointly and severally liable for the account. You may designate authorized parties to act on the account; you remain responsible for their actions within the scope of the authority you grant. We may rely on the instructions of any owner or authorized party until we receive written notice of a change and have had a reasonable opportunity to act on it.

Power of Attorney and Fiduciary Capacity

If you wish to authorize another person to act on your account under a power of attorney, we may require that the power of attorney be in a form acceptable to us and may require additional documentation. We may, but are not obligated to, recognize a power of attorney, and we may decline to act on instructions that we reasonably believe to be unauthorized, fraudulent, or contrary to the terms of the power of attorney. We are not liable for acting in good-faith reliance on a power of attorney we reasonably believe to be valid.

Deceased or Incapacitated Account Holder

Upon receiving notice that an account holder has died or been adjudicated incompetent, we may place restrictions on the account and may require documentation, such as letters testamentary or a death certificate, before releasing funds or acting on instructions. We may, to the extent permitted by law, honor or refuse to honor items and instructions presented after such an event. The disposition of the account upon the death of an owner is governed by the account agreement, any beneficiary designation, and applicable law.

Backup Withholding and Tax Reporting

We are required to report certain payments, such as interest, dividends, and certain other income, to the Internal Revenue Service and to you on the applicable information returns. If you fail to provide a correct taxpayer identification number, fail to certify that you are not subject to backup withholding, or are notified by the Internal Revenue Service that you are subject to backup withholding, we may be required to withhold and remit a percentage of certain payments to the Internal Revenue Service as backup withholding. Any amounts withheld are reported to you and may be claimed as a credit on your tax return.

Sanctions and Anti-Money-Laundering Compliance

We are required to comply with economic sanctions programs administered by the U.S. Department of the Treasury's Office of Foreign Assets Control and with anti-money-laundering laws, including the Bank Secrecy Act and the USA PATRIOT Act. To help the government fight the funding of terrorism and money-laundering activities, federal law requires us to obtain, verify, and record information that identifies each person who opens an account. We may block, freeze, reject, or report transactions, and may decline to open or may close an account, as necessary to comply with these laws. We are not liable for any action taken in good-faith compliance with these requirements.

Business Continuity

We maintain a business-continuity program designed to enable us to continue or promptly resume critical operations following a significant business disruption. Depending on the nature and severity of a disruption, there may be a delay in our ability to process transactions or to provide access to your account. We will endeavor to communicate with you through available channels during any significant disruption. Our business-continuity plan is subject to modification, and a summary is available upon request.

Statement Errors and Time Limits

You must examine this document promptly upon receipt and notify us of any error, unauthorized transaction, or discrepancy within the time period specified in your agreement and by applicable law. Different time limits apply to different types of transactions, and your failure to notify us within the applicable period may bar you from asserting a claim and may relieve us of liability for the item and for subsequent items involving the same wrongdoer. Maintaining accurate records and reconciling each statement promptly helps protect your rights.

Service Providers and Subcontractors

We may use affiliates and unaffiliated service providers to perform services in connection with your account, including processing transactions, producing and delivering statements, providing customer service, and detecting fraud. We require our service providers to maintain the confidentiality and security of your information consistent with our obligations and applicable law. Our use of service providers does not relieve us of our responsibilities to you under your agreement and applicable law.

Interest-Rate and Cost-of-Funds Information

Where your account or loan carries a variable rate, that rate is tied to an index described in your agreement, such as a published prime rate or a benchmark interest rate, plus or minus a margin. Changes in the index will cause your rate to change, which may affect the amount of interest you earn or owe and, for loans, the amount of your payment. Past index values are not a guarantee of future values. If an index is discontinued or becomes unavailable, your agreement describes how a replacement index will be selected.

Refusal of Transactions; Holds

We may refuse, limit, or place a hold on any transaction or on funds in your account for reasons including suspected fraud or illegality, legal process, disputes regarding the account, our security procedures, or your failure to comply with your agreement. We may also place a hold on funds that are subject to a claim or that we reasonably believe may not be collectible. We will release a hold when the reason for the hold no longer applies or as required by law. We are not liable for any loss caused by a refusal or hold imposed in good faith.

Legal Process

If we receive legal process relating to you or your account, such as a subpoena, garnishment, levy, restraining order, or other order or document that we reasonably believe to be valid, we may comply with it without prior notice to you, to the extent permitted or required by law. We may place a hold on or remit funds from your account in response to legal process and may charge any applicable fee. We are not liable to you for complying with legal process, even if the process is later determined to be invalid, provided we acted in good faith.

Reaffirmation of Accuracy and Acceptance

By continuing to use your account and services after receiving this document and the disclosures it contains, you acknowledge that you have received and reviewed them and that you accept the terms described, as they may be amended in accordance with your agreement and applicable law. If you do not agree with any term, you should contact us promptly and, where applicable, exercise any right you have to reject the term or to close the account. These disclosures supplement, and do not replace, the complete terms of your account agreement, which controls in the event of any conflict.

Currency, Rounding, and Presentation

Amounts in this document are presented in U.S. dollars unless otherwise indicated, and are rounded to the nearest cent. Where amounts are derived from values in another currency, the exchange rate and the basis of translation are described in the relevant section; rounding at intermediate steps may cause small differences between a total and the sum of its parts. Percentages are presented for convenience and may be rounded; the underlying values control. Subtotals and totals are computed from unrounded figures where practicable.

Interpretation

In this document, the singular includes the plural and the plural includes the singular, and references to one gender include the others, as the context requires. References to a statute, regulation, or rule include any successor provision and any rules promulgated under it. The words 'including' and 'such as' are illustrative and not limiting. Examples are provided for clarity and do not limit the generality of the related provision. If a date for action falls on a day that is not a business day, the action may be taken on the next business day unless otherwise required.

Survival of Terms

Provisions of your agreement that by their nature should survive the closing of your account or the termination of your relationship with us will survive, including provisions relating to amounts you owe, indemnification, limitation of liability, dispute resolution, governing law, and recordkeeping. The closing of your account does not affect your obligations or our rights with respect to transactions and balances arising before the account was closed.

Notices to Us

Unless your agreement specifies a different address or method for a particular type of notice, notices to us must be sent in writing to the customer service or correspondence address shown on this document, and are effective when we receive them and have had a reasonable opportunity to act on them. Notices relating to errors, disputes, or requests for information may have specific addresses and procedures described in the applicable section; using the correct address and following the described procedure helps ensure your notice is handled promptly and preserves your rights.

No Third-Party Beneficiaries

Your agreement is for the benefit of you and us and, where applicable, our successors and assigns. Except as expressly provided, your agreement does not create any rights in any other person, and no other person may enforce any provision of your agreement. This provision does not limit any rights that a regulatory authority may have under applicable law.

Headings and Counterparts

The headings used in this document and in your agreement are for convenience of reference only, do not constitute a part of the agreement, and do not affect the meaning or interpretation of any provision. Where your agreement is executed or acknowledged in counterparts or by electronic means, each counterpart is deemed an original, and all counterparts together constitute one and the same instrument.

Effective Date and Retention

The terms and disclosures summarized in this document are effective as of the statement or reporting date shown and remain in effect until amended in accordance with your agreement and applicable law. We recommend that you retain this document, together with prior statements and your agreement, for the period during which related transactions or filings may be reviewed, and in any event for as long as you maintain the account. If you need additional copies, contact us using the information provided.

Funds Transfers — ACH and Wire

Funds transfers to and from your account, including automated clearing house (ACH) entries and wire transfers, are governed by your agreement, the operating rules of the applicable funds-transfer system, and applicable law, including Article 4A of the Uniform Commercial Code as adopted in the governing jurisdiction. When you originate or authorize a transfer, you authorize us to debit your account for the amount of the transfer and any applicable fee. We may rely on the account and routing numbers you provide, even if they identify a person different from the named recipient; we and other institutions in the transfer chain are not obligated to verify that the name and number match.

ACH entries are provisional until the receiving institution receives final settlement. If final settlement is not received, the receiving institution is entitled to a refund and the originator is deemed not to have paid you. We may reverse or adjust an entry to correct an error in accordance with the applicable rules. Cut-off times apply to the origination of transfers; transfers requested after the cut-off time may be processed on the next business day. International transfers may be subject to additional disclosures, exchange-rate adjustments, and the laws of other jurisdictions.

Stop Payments

You may request a stop payment on a check or certain preauthorized electronic transfers by providing us with sufficient information to identify the item and by following the procedures and timing requirements described in your agreement. A stop-payment order is effective for the period stated in your agreement and may be renewed. We are not liable for paying an item over a stop-payment order if the order was not received in time for us to act on it, did not accurately describe the item, or had expired. A fee may apply to each stop-payment request.

Preauthorized Transfers

If you have arranged for regular preauthorized electronic transfers to or from your account, you may stop payment of any such transfer by notifying us in the manner and within the time described in your agreement, generally at least three business days before the scheduled transfer date. If these regular payments may vary in amount, the party you are to pay is required to tell you, before each payment, when it will be made and how much it will be. We will comply with timely and properly completed stop-payment requests as required by applicable law.

Joint Accounts and Survivorship

If your account is a joint account, the rights of the owners upon the death of an owner are determined by the form of ownership designated for the account and by applicable law. Many joint accounts carry rights of survivorship, meaning that upon the death of an owner the funds belong to the surviving owner or owners; other forms of ownership may direct the funds to the estate of the deceased owner. You should review the ownership designation for your account and consult an advisor to ensure it reflects your intentions.

Accounts for Minors and Custodial Accounts

Accounts established for the benefit of a minor, including accounts under the Uniform Transfers to Minors Act or a comparable law, are subject to the requirements of that law and of your agreement. The custodian of such an account is responsible for managing the account for the benefit of the minor and for transferring the property to the minor at the age specified by law. We are not responsible for monitoring or enforcing the custodian's compliance with the custodian's fiduciary duties.

Dormant Accounts and Reactivation

If your account has no owner-initiated activity for the period specified by applicable law, we may classify it as dormant and may restrict certain activity to protect the account. We may attempt to contact you before classifying the account as dormant. To reactivate a dormant account, you may need to contact us and complete certain verification procedures. As described elsewhere, funds in a dormant account may ultimately be remitted to the state as unclaimed property if the account remains inactive and we are unable to locate you.

Disputes Regarding the Account

If we receive conflicting instructions or claims regarding your account, or if we are uncertain as to who is authorized to act on the account, we may, without liability, refuse to act, freeze the account, require satisfactory documentation or a court order, or interplead the funds into court. You agree to reimburse us for our reasonable expenses, including attorneys' fees, incurred in connection with any dispute regarding the account, to the extent permitted by applicable law. We are not obligated to determine the merits of any competing claim.

Adverse Claims

If a person who is not an owner of the account asserts a claim to the funds, or if we are served with legal process or otherwise have a reasonable basis to believe a dispute exists, we may place a hold on all or part of the funds, refuse to permit withdrawals, or take other action we deem appropriate, until the matter is resolved to our satisfaction or we receive instructions from a court. We are not required to recognize any adverse claim unless we are provided with adequate documentation and, where appropriate, indemnity or a bond satisfactory to us.

Verification and Recoupment

All deposits and other credits to your account are subject to verification and may be reversed, adjusted, or charged back if we determine that the credit was made in error, was not finally collected, or was procured by fraud. If a deposited item is returned unpaid, we may charge the amount of the item back against your account, together with any applicable fee, even if doing so creates an overdraft, and even if the item itself is not returned to us. We may charge back a returned item at any time permitted by applicable law.

Substitute Checks and Image Exchange

Checks you write or deposit may be converted to electronic images and processed through image-exchange systems, and the original paper check may not be returned to you. A substitute check is the legal equivalent of the original check and contains all the information on the original check. You may have rights under federal law if a substitute check is improperly charged against your account; those rights, and the procedure for asserting an expedited recredit claim, are described in the applicable disclosure.

Limitations on Transactions

Federal law and your agreement may impose limits on the number or type of certain transactions you may make on particular accounts during a statement cycle, and we may impose dollar limits on certain transactions for security or operational reasons. If you exceed an applicable limit, we may decline the transaction, assess a fee, or, after repeated occurrences, convert or close the account. We may change applicable limits in accordance with your agreement and applicable law, and we will notify you of changes as required.

Best Execution and Order Handling (Investment Accounts)

Where this document relates to an investment account, the manager seeks to obtain best execution of transactions, taking into account price, costs, speed, likelihood of execution and settlement, size, nature, and other relevant considerations. The manager may aggregate orders for multiple accounts where consistent with its duty to seek best execution and its allocation policy. Transaction costs are borne by the account as disclosed. The manager's order-handling and allocation policies are available on request.

Conflicts of Interest (Investment Accounts)

The manager and its affiliates may face conflicts of interest in providing services, including conflicts arising from compensation arrangements, relationships with issuers or other clients, and proprietary interests. The manager maintains policies designed to identify and manage such conflicts consistent with its duties to the account. A summary of the manager's conflicts-of-interest policy and, where applicable, its proxy-voting policy and its policy on the receipt of research, is available on request.

Statement Delivery and Address Changes

We will send statements and notices to the most recent address you have provided, whether postal or electronic, according to your delivery election. You are responsible for notifying us promptly of any change of address or email; you may do so through your online account, by telephone, or in writing. If statements or notices are returned to us as undeliverable, we may discontinue sending them until you provide a valid address, but the information they contain remains effective as of the date sent. Statements not received should be requested promptly so that you can review your account activity within the applicable error-reporting periods.

Provisional Credit and Reversal

In resolving a claim of error involving an electronic transfer, if we are required to provide a provisional credit while we investigate, that credit is provisional and may be reversed if our investigation determines that no error occurred or that the error was different from what you described. If we reverse a provisional credit, we will notify you of the date and amount of the reversal and will honor, without charge, items that would have paid had the provisional credit not been reversed, for a limited period as required by applicable law.

Holds on Deposited Funds

In addition to the general funds-availability schedule, we may place a hold on funds you deposit by check, and a longer hold may apply if the check is for a large amount, is a redeposited check, is drawn on an account with repeated overdrafts, is being deposited to a new account, or where we have reasonable cause to doubt collectibility. When we place a hold of this kind, we will notify you and tell you when the funds will be available. Funds you deposit may be delayed for a longer period under these circumstances even though the funds have not been finally collected.

Remote Deposit and Mobile Services

If you use a remote deposit, mobile deposit, or similar service to deposit checks electronically by transmitting an image, you agree to retain the original item for the period specified in your agreement and not to deposit the original or a copy again, and to destroy it after the retention period. We may impose limits on the amount and number of items deposited through these services, and we may refuse any image that does not meet our quality or eligibility standards. Funds from remotely deposited items are subject to the funds-availability and hold provisions of your agreement.

Online and Mobile Access; Security Credentials

Access to your account through online and mobile channels requires security credentials, which may include passwords, passcodes, security questions, one-time codes, and, where offered, biometric identifiers stored on your device. You are responsible for keeping your credentials confidential and for all activity conducted using your credentials. Notify us immediately if you believe your credentials have been compromised. We may suspend access, require re-verification, or impose additional authentication where we reasonably believe it is necessary to protect your account.

Account Alerts

We may make available account alerts that notify you of events such as low balances, large transactions, or payments due. Alerts are provided for convenience, may be delayed or fail to be delivered for reasons outside our control, and should not be relied upon as the sole means of monitoring your account. You are responsible for reviewing your statements and account activity regardless of whether you receive alerts. Standard message and data rates may apply to alerts delivered by text message.

Revoking Recurring Payment Authorizations

If you have authorized a third party to initiate recurring charges or debits to your account, you may revoke that authorization by notifying the third party and, as a backstop, by notifying us in the manner and within the time described in your agreement. To stop a recurring electronic debit, we generally must receive your request at least three business days before the scheduled date. We may require you to confirm your request in writing. Revoking an authorization with us does not relieve you of any obligation you have to the third party under your agreement with that party.

Returned Mail and Inactive Contact

If mail we send you is returned as undeliverable, or if we are otherwise unable to contact you, we may suspend the delivery of statements and notices and may take additional steps to attempt to locate you. Prolonged inability to contact you, combined with an absence of account activity, may result in your account being classified as dormant and, ultimately, in the remittance of funds to the appropriate state as unclaimed property, as described elsewhere in these disclosures.

Credit Inquiries and Reporting Authorization

By applying for or maintaining an account or credit with us, you authorize us to obtain credit reports and other information about you from consumer reporting agencies and other sources in connection with evaluating your application, administering your account, and for other permissible purposes. We may report information about your account and your payment history to consumer reporting agencies. Such information may be reflected in your credit report and may affect your credit standing and your ability to obtain credit in the future.

Copies, Research, and Special Requests

Upon your request, and subject to any applicable fee disclosed in our fee schedule, we can provide copies of statements, checks, and certain other records for the periods we are required to retain them, and we can perform research on your account. Requests that require substantial time or that relate to older periods may take longer to fulfill and may be subject to higher fees. We will tell you the applicable fee before performing the requested service where required by law.

Tax Information Reporting

We report information about your account to the Internal Revenue Service and to you as required by law, including interest, dividends, and certain other income and proceeds, on the applicable information returns. You are responsible for providing a correct taxpayer identification number and the certifications we request; failure to do so may result in backup withholding and in our inability to report correctly. The tax treatment of amounts credited to or paid from your account is your responsibility; we do not provide tax advice.

Limitation of Our Liability for Service Interruptions

We will not be liable for failing to complete a transaction or to provide a service if, through no fault of ours, you do not have sufficient available funds; if a system, network, or facility was not working properly and you knew about the breakdown when you started the transaction; if circumstances beyond our control prevented the transaction despite reasonable precautions; or as otherwise provided in your agreement or permitted by applicable law. This limitation is in addition to, and not in place of, the other limitations of liability described in these disclosures.

Entirety of Disclosures; Order of Precedence

These disclosures summarize selected terms applicable to your account or relationship and are provided with your statement for your convenience. They do not replace your complete agreement, fee schedule, rate sheet, and other governing documents, which contain the full terms and control in the event of any conflict with these summaries. If you would like a complete copy of the governing documents, contact us using the information shown on this statement, and we will provide one.